CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

Application no. 31163/06
by NOVOSIBIRSK REGIONAL BRANCH OF THE REPUBLICAN PARTY OF RUSSIA
against Russia

The European Court of Human Rights (First Section), sitting on 6 November 2008 as a Chamber composed of:

Christos Rozakis, *President,*
Anatoly Kovler,
Elisabeth Steiner,
Khanlar Hajiyev,
Dean Spielmann,
Sverre Erik Jebens,
Giorgio Malinverni, *judges,*
and Søren Nielsen, *Section Registrar*,

Having regard to the above application lodged on 18 July 2006,

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

THE FACTS

The applicant is the Novosibirsk regional branch of the political party "Republican Party of Russia". The branch was registered on 4 October 2005 in Novosibirsk. It was represented before the Court by its chairman Mr S. Nastashevskiy and by members of its Political Council Mr V. Zhmulev, Mr I. Indinok, Mr P. Tyutyunnik, Mr R. Ovsyannikov and Ms G. Ivanova. The Russian Government ("the Government") were represented by Ms V. Milinchuk, former Representative of the Russian Federation at the European Court of Human Rights.

The facts of the case, as submitted by the parties, may be summarised as follows.

On 24 October 2005 the Ministry of Justice applied to a court, seeking dissolution of the applicant in connection with irregularities committed at the moment of its founding.

On 21 June 2006 the Tsentralniy District Court of Novosibirsk granted the Ministry's application and dissolved the applicant. On 17 August 2006 the Novosibirsk Regional Court upheld the judgment on appeal.

COMPLAINT

The applicant complained under Article 11 of the Convention about its dissolution.

THE LAW

On 3 September 2007 the application was communicated to the respondent Government.

On 22 November 2007 the Government's observations on the admissibility and merits of the application were received and the applicant was invited to submit its written observations in reply by 29 January 2008.

On 8 January 2008 the English version of the Government's observations was forwarded to the applicant. The time-limit for the submission of the applicant's observations remained unaffected.

As the applicant's observations on the admissibility and merits had not been received by the indicated time-limit, on 19 March 2008 the applicant was advised by registered mail that the failure to submit its observations might result in the strike-out of the application. The letters were sent at the applicant's office address and at the address of its chairman. The letters were returned as unclaimed.

The Court recalls Article 37 of the Convention which, in the relevant part, reads as follows:

> "1. The Court may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to the conclusion that
>
> (a) the applicant does not intend to pursue his application;
>
> ...
>
> However, the Court shall continue the examination of the application if respect for human rights as defined in the Convention and the Protocols thereto so requires..."

The applicant was advised that it was to submit written observations on the admissibility and merits of the case. It was subsequently reminded

thereof. However, the applicant's representatives did not collect the Court's letters and the letters were returned to the Court as unclaimed. The Court infers therefrom that the applicant does not intend to pursue its application. Furthermore, it considers that respect for human rights as defined in the Convention and its Protocols does not require it to continue the examination of the case.

In these circumstances the Court considers the case should be struck out of the list in accordance with Article 37 § 1 (a) of the Convention.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Søren NIELSEN
Registrar

Christos ROZAKIS
President